

6.

CASE #	CASE NAME	HEARING NAME
CVRI2403136	POINSETTE vs TARGET CORPORATION	MOTION TO TAX COSTS (x2)

Tentative Ruling: The Court DENIES Plaintiff's requests for judicial notice of Exhibits 1 through 6; judicial notice is unnecessary because the Court has authority to look through its own file. (See *Davis v. Southern California Edison Company* (2011) 236 Cal.App.4th 619, 632, fn. 11 [judicial notice of document included in appellate record is unnecessary]). The Court does not find that Plaintiff's FEHA action was frivolous. As such, only costs properly allocated to non-FEHA claims may be recovered by a successful defendant. *Roman v. BRE Properties, Inc.* (2015) 237 Cal.App.4th 1040, 1062 (internal citations and quotations marks omitted). Here, Defendant does not argue that its costs were increased by the non-FEHA claims. In fact, Defendant concedes that its costs could not reasonably be apportioned between the FEHA and non-FEHA causes of action and that the two sets of claims were "intertwined" and "not separable." (Opp. to Motion to Tax Costs, pp. 2-3; Reply to Motion for Costs, pp. 2-3.). Thus, the Court GRANTS Plaintiff's motion to tax costs in full, and DENIES Defendant's corresponding motion for costs.

As to Plaintiff's request for sanctions under C.C.P. § 128.7, it must be brought via separate motion and requires a 21-day safe harbor period. (C.C.P. § 128.7(c)(1).) Here, Plaintiff has not complied. The Court declines to consider Plaintiff's request for sanctions in this motion.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2501024	GONZALEZ vs ROSALES	MOTION TO BE RELIEVED AS COUNSEL FOR ANTONIO ROSALES

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2501024	GONZALEZ vs ROSALES	MOTION TO BE RELIEVED AS COUNSEL FOR ROSALES BEJAR CONSTRUCTION LLC

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.